

1 ENGROSSED SENATE
2 BILL NO. 1360

By: Seifried of the Senate

3 and

4 Moore of the House
5

6 An Act relating to mathematics instruction; amending
7 70 O.S. 2021, Section 1210.508, as last amended by
8 Section 10, Chapter 492, O.S.L. 2025 (70 O.S. Supp.
9 2025, Section 1210.508), which relates to the
10 Oklahoma School Testing Program Act; modifying date
11 by which certain report is to be submitted; amending
12 Sections 2, 3, 4, 5, and 8, Chapter 492, O.S.L. 2025
13 (70 O.S. Supp. 2025, Sections 1210.900, 1210.901,
14 1210.902, 1210.903, and 1210.907), which relate to
15 the Oklahoma Math Achievement and Proficiency Act;
16 directing certain teachers to have access to certain
17 training; creating the Office of Mathematics
18 Improvement within the State Department of Education
19 within certain time period; providing for appointment
20 of Director; providing qualifications for and duties
21 of Director; directing the State Board of Education
22 to approve certain number of screening instruments
23 beginning in certain school year; requiring
24 instruments to be chosen from certain list; directing
the Office of Mathematics Improvement to approve and
publish a list of certain professional development
programs and providers; removing language requiring
the Department to provide certain list of qualified
entities; modifying school year in which certain
students are to begin being screened for dyscalculia;
allowing school districts to administer certain
screening tool prior to certain school year;
modifying date by which the State Board of Education
is to develop certain policies; requiring development
in certain consultation; requiring the Board to adopt
a list of certain screening tools based on certain
recommendations; modifying date by which public
school districts and the Department are to begin
reporting certain data; updating statutory language;
updating statutory references; providing an effective
date; and declaring an emergency.

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3 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

4 SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508, as
5 last amended by Section 10, Chapter 492, O.S.L. 2025 (70 O.S. Supp.
6 2025, Section 1210.508), is amended to read as follows:

7 Section 1210.508. A. 1. By no later than December 31, 2016,
8 the State Board of Education shall adopt a statewide system of
9 student assessments in compliance with the Elementary and Secondary
10 Education Act of 1965 (ESEA), as reauthorized and amended by P.L.
11 No. 114-95, also known as the Every Student Succeeds Act (ESSA).

12 2. The statewide student assessment system adopted by the Board
13 pursuant to this subsection shall be aligned with the Oklahoma
14 Academic Standards as adopted by the Board and which prepare
15 students for college and careers.

16 B. 1. The Board shall issue a request for proposals for the
17 selection of assessments to be administered to students in grades
18 three through twelve as a part of the statewide student assessment
19 system adopted by the Board pursuant to this section.

20 2. The Board shall adopt assessments from the selected
21 proposals that were submitted pursuant to paragraph 1 of this
22 subsection. The adopted assessments shall be administered by the
23 Board for a period that is in coordination with the six-year subject
24 area textbook adoption cycle unless the vendor does not fulfill the

1 terms of the contract or fails to comply with or violates the terms
2 of the contract. The Board shall administer the assessments
3 beginning with the 2017-2018 school year.

4 C. The statewide student assessment system adopted by the Board
5 pursuant to this section shall include assessments that:

6 1. Are aligned with the Oklahoma subject matter standards as
7 adopted by the Board;

8 2. Provide a measure of comparability among other states;

9 3. Yield both norm-referenced scores and criterion-referenced
10 scores;

11 4. Have a track record of statistical reliability and accuracy;
12 and

13 5. For assessments administered in high school, provide a
14 measure of future academic performance.

15 D. For the 2016-2017 school year, the Board shall administer
16 assessments in:

17 1. English Language Arts or reading and mathematics in grades
18 three through eight and at least once in high school, during the
19 grade span of nine through twelve;

20 2. Science not less than once during each grade span of three
21 through five, six through nine, and ten through twelve; and

22 3. United States History not less than once during the grade
23 span of nine through twelve.
24

1 E. 1. Beginning with the 2017-2018 school year, the statewide
2 student assessment system shall include assessments in:

- 3 a. English Language Arts and mathematics in grades three
4 through eight and at least once in high school, during
5 the grade span of nine through twelve,
- 6 b. science not less than once during each grade span of
7 three through five, six through nine, and ten through
8 twelve, and
- 9 c. United States History, with an emphasis on civics, not
10 less than once during the grade span of nine through
11 twelve.

12 2. Beginning with the 2017-2018 school year, the statewide
13 student assessment system may include:

- 14 a. assessments in reading, writing, and mathematics in
15 certain grades as determined by the Board, and
- 16 b. contingent upon the availability of funds, an
17 additional nationally recognized college- and career-
18 readiness assessment or assessments as recommended by
19 the State Department of Education, which will be
20 administered to students in high school at no cost to
21 the student.

22 F. 1. Beginning with students entering the ninth grade in the
23 2017-2018 school year, each student shall take the assessment or
24 assessments included in the statewide student assessment system

1 adopted by the Board pursuant to subsection A of this section in
2 order to graduate from a public high school with a standard diploma.
3 All students shall take the assessment or assessments prior to
4 graduation, unless otherwise exempt by law.

5 2. Beginning with students entering the ninth grade in the
6 2017-2018 school year, each student, in addition to taking the
7 assessment or assessments included in the statewide student
8 assessment system adopted by the Board pursuant to subsection A of
9 this section, shall meet any other high school graduation
10 requirements adopted by the Board pursuant to Section 5 of Enrolled
11 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
12 Legislature in order to graduate from a public high school with a
13 standard diploma.

14 3. For students who start the ninth grade prior to or during
15 the 2016-2017 school year, school districts shall adopt a plan that
16 establishes the assessment or assessments those students are
17 required to take in order to graduate from a public high school with
18 a standard diploma. The plan may also include any or all of the
19 other high school graduation requirements adopted by the Board
20 pursuant to Section 5 of Enrolled House Bill No. 3218 of the 2nd
21 Session of the 55th Oklahoma Legislature that those students will be
22 required to meet in order to graduate from a public high school with
23 a standard diploma.

1 4. The Board shall promulgate rules to ensure that students who
2 transfer into ~~an Oklahoma~~ a school district in this state from out-
3 of-state after the junior year of high school shall not be denied
4 the opportunity to be awarded a standard diploma due to differing
5 testing requirements.

6 G. In order to provide an indication of the levels of
7 competency attained by the student in a permanent record for
8 potential future employers and institutions of higher education,
9 school districts shall report on the high school transcript of the
10 student the highest-achieved score on the assessment or assessments
11 included in the statewide student assessment system adopted by the
12 Board pursuant to subsection A of this section and any business- and
13 industry-recognized endorsements attained.

14 H. Students who do not perform at a proficiency level on
15 assessments shall be remediated as established in the assessment
16 requirements adopted by the Board pursuant to Section 5 of Enrolled
17 House Bill No. 3218 of the 2nd Session of the 55th Oklahoma
18 Legislature, subject to the availability of funding.

19 I. 1. All assessments required by this section shall measure
20 academic competencies in correlation with the subject matter
21 standards adopted by the Board pursuant to Sections 11-103.6 and 11-
22 103.6a of this title and referred to as the Oklahoma Academic
23 Standards. The State Board of Education shall evaluate the subject
24 matter standards to ensure the competencies reflect high standards,

1 are specific, well-defined, measurable, and challenging, and will
2 prepare elementary students for next-grade-level course work and
3 secondary students for postsecondary studies at institutions of
4 higher education or technology center schools without the need for
5 remediation. All subject matter standards shall reflect the goals
6 as set forth in Section 11-103.6 of this title and of improving the
7 state average of college entrance exam scores.

8 2. The State Department of Education shall annually evaluate
9 the results of the assessments. The State Board of Education shall
10 ensure that preliminary results for all statewide assessments are
11 reported to districts no later than June 20 of each year and are
12 presented in a manner that yields detailed, diagnostic information
13 for the purpose of guiding instruction and student remediation. As
14 improvements are made to the assessments required by this section,
15 the Board shall seek to increase the depth of knowledge assessed for
16 each subject. The State Board of Education shall seek to ensure
17 that data yielded from the assessments required in this section ~~are~~
18 is utilized at the school district level to inform instruction,
19 professional development, school improvement, and remediation for
20 students.

21 3. The Commission for Educational Quality and Accountability
22 shall determine the cut scores for the performance levels on all
23 statewide assessments. The Commission shall conduct an ongoing
24 review to compare the statewide assessment content and performance

1 descriptors with those of other states. Upon receipt of the review,
2 the Commission may adjust the cut scores as necessary.

3 4. The State Board of Education, for the purposes of conducting
4 reliability and validity studies, monitoring contractor adherence to
5 professionally accepted testing standards, and providing
6 recommendations for testing program improvement, shall retain the
7 services of an established, independent agency or organization that
8 is nationally recognized for its technical expertise in educational
9 testing but is not engaged in the development of aptitude or
10 achievement tests for elementary or secondary level grades. These
11 national assessment experts shall annually conduct studies of the
12 reliability and validity of the statewide assessments administered
13 pursuant to this section. Validity studies shall include studies of
14 decision validity and concurrent validity.

15 J. 1. The State Board of Education shall promulgate rules
16 setting the assessment window dates for each statewide assessment so
17 that the assessments are administered according to recommended
18 testing protocols and so that the assessment results are reported
19 back to school districts in a timely manner. The vendor shall
20 provide a final electronic data file of all school site, school
21 district, and state results to the State Department of Education and
22 the Office of Educational Quality and Accountability prior to August
23 20 of each year. The Department shall forward the final data files
24 for each school district and each school site in that district to

1 the school district. The Board shall ensure the contract with the
2 vendor includes a provision that the vendor report assessment
3 results directly to the Office of Educational Quality and
4 Accountability at the same time ~~it is~~ they are reported to the
5 Board.

6 2. State, district, and site level results of all assessments
7 required in this section shall be disaggregated by gender, race,
8 ethnicity, disability status, migrant status, English proficiency,
9 and status as economically disadvantaged, except that such
10 disaggregation shall not be required in a case in which the number
11 of students in a category is insufficient to yield statistically
12 reliable information or the results would reveal personally
13 identifiable information about an individual student. Each school
14 site shall notify the student's parents or legal guardians of the
15 school's performance levels in the Oklahoma School Testing Program
16 as reported in the Oklahoma Educational Indicators Program at the
17 end of each school year.

18 K. The State Board of Education shall be responsible for the
19 field-testing and validation of the statewide assessment system
20 required in subsection A of this section.

21 L. The State Board of Education shall develop, administer, and
22 incorporate as a part of the Oklahoma School Testing Program other
23 assessment programs or procedures including appropriate
24 accommodations for the assessment of students with disabilities as

1 required by the Individuals with Disabilities Education Act (IDEA),
2 20 U.S.C., Section 1400 et seq.

3 M. For purposes of developing and administering alternate
4 assessments for students with the most significant cognitive
5 disabilities, the State Board of Education shall not be subject to
6 subsections D and E of Section 11-103.6a of this title.

7 N. By ~~December 15, 2026~~ December 15, 2028, and annually
8 thereafter, the State Board of Education shall electronically submit
9 a report to the Legislature containing data collected for the most
10 recently completed school year on the number and demographics of
11 students who were eligible for advanced mathematics courses, the
12 number and demographics of students who were placed in advanced
13 mathematics courses, the number and demographics of students placed
14 in mathematics intervention courses, and the number and demographics
15 of students not placed in advanced mathematic courses or mathematic
16 intervention courses. The report shall include information on the
17 type and format of advanced mathematic courses and the type and
18 format of mathematic intervention courses.

19 O. The State Board of Education shall provide guidance on how
20 to best develop programming and courses to ensure all impacted
21 students receive rigorous, academically appropriate instruction in
22 mathematics.

SECTION 2. AMENDATORY Section 2, Chapter 492, O.S.L.

2025 (70 O.S. Supp. 2025, Section 1210.900), is amended to read as follows:

Section 1210.900. A. ~~Sections 2~~ This section through ~~&~~ Section 1210.907 of this ~~act~~ title shall be known and may be cited as the "Oklahoma Math Achievement and Proficiency Act".

B. The Legislature finds that it is essential for children enrolled in the public schools in this state to develop strong mathematical proficiency early and consistently. The Legislature further finds that clear and visible goals, assessments to determine math proficiency at each school, the use of scientifically based and researched methodologies in math instruction, along with regular and periodic measurements of school math improvement, and accountability at each level of the educational system will result in a significant increase in the number of children performing at or above grade level in mathematics.

C. The purpose of the Oklahoma Math Achievement and Proficiency Act is to ensure that student achievement in math is encouraged and progression from one grade to another is determined, in part, upon proficiency in mathematics, that school district board of education policies facilitate promotion of advanced math instruction and intervention services to address student math needs, and that each student and his or her parent or legal guardian be informed of the student's progress in mathematics.

1 D. Each public school district in this state shall ensure that
2 all students receive a well-rounded education focused on building
3 deep foundations in mathematics, reading, and writing. The State
4 Board of Education shall encourage school districts to integrate the
5 teaching of the other curricular areas in subject matter standards
6 adopted by the Board with the instruction of mathematics, reading,
7 and writing.

8 E. All teachers of mathematics in the public schools in this
9 state shall have access to training in evidence-based professional
10 development programs to deepen their content knowledge, learn
11 specific effective and impactful teaching strategies, and develop
12 productive dispositions toward math, and then incorporate into
13 instruction the foundational elements of math instruction, including
14 the development of grade-level appropriate mathematical proficiency
15 which is a combination of real-world problem-solving skills,
16 procedural fluency, conceptual understanding, and productive
17 dispositions.

18 F. 1. There is hereby created within the State Department of
19 Education an Office of Mathematics Improvement, which shall be
20 created within ninety (90) days of the effective date of this act.
21 The Superintendent of Public Instruction shall appoint a Director of
22 the Office of Mathematics Improvement whose exclusive focus shall be
23 mathematics instruction for students in grades kindergarten through
24 five. The Director shall have experience in administrative duties,

1 in teaching mathematics in a public or private elementary school,
2 and as an elementary mathematics specialist, coach, or
3 administrator.

4 2. The Director of the Office of Mathematics Improvement shall:

- 5 a. monitor implementation of screening instruments,
6 diagnostic assessments, and formative assessments for
7 grades kindergarten through five to identify students
8 in need of support for key numeracy concepts,
- 9 b. recommend training and support for educators for the
10 effective implementation and interpretation of
11 diagnostic tools. The diagnostic tool shall be used
12 with students who have been identified with
13 deficiencies in mathematics based on screening
14 instruments, diagnostic assessments, formative
15 assessments, benchmark assessments, teacher
16 observation, or any combination thereof,
- 17 c. designate a team of educators to explore the
18 connection between difficulties with number sense and
19 dyscalculia as well as possible effective screening
20 instruments,
- 21 d. commit necessary resources to understanding the needs
22 of students struggling with number sense or
23 dyscalculia, or both, before implementing
24

1 instructional practices or assessments that could
2 adversely affect student learning,
3 e. monitor the implementation and progress of summer
4 mathematics academies,
5 f. recommend changes and improvements to any professional
6 development providers and public schools in this state
7 based on data collected and analyzed by the Office of
8 Mathematics Improvement, and
9 g. monitor the implementation and progress of the
10 Oklahoma Math Achievement and Proficiency Act.

11 SECTION 3. AMENDATORY Section 3, Chapter 492, O.S.L.
12 2025 (70 O.S. Supp. 2025, Section 1210.901), is amended to read as
13 follows:

14 Section 1210.901. A. To identify students who have a math
15 deficiency including students with characteristics of dyscalculia,
16 each student enrolled in second, third, fourth, and fifth grade in a
17 public school in this state shall be screened at the beginning,
18 middle, and end of each school year for math proficiency including,
19 but not limited to, real-world problem-solving skills, procedural
20 fluency, conceptual understanding, and productive dispositions. A
21 screening instrument approved by the State Board of Education shall
22 be utilized for the purposes of this section. In determining which
23 screening instrument to approve, the State Board of Education shall
24 take into consideration, at a minimum, the following factors:

1 1. The time required to conduct the screening instrument with
2 the intention of minimizing the impact on instructional time;

3 2. The timeliness in reporting screening instrument results to
4 teachers, administrators, and parents or legal guardians of
5 students; and

6 3. The integration of the screening instrument into the math
7 curriculum.

8 B. Beginning in the ~~2026-2027~~ 2027-2028 school year, the State
9 Board of Education shall approve a list of three screening
10 instruments for use at the beginning, middle, and end of the school
11 year for monitoring progress and measurement of math proficiency as
12 required in subsection A of this section. The screening instruments
13 shall be chosen from a list of recommendations from the Office of
14 Mathematics Improvement within the State Department of Education.

15 The screening instrument shall:

16 1. Assess mathematical proficiency, which is a combination of
17 real-world problem-solving skills, procedural fluency, conceptual
18 understanding, and productive dispositions for the grade level as
19 defined by the state's subject matter standards;

20 2. Document the validity and reliability of each assessment;

21 3. Be used for identifying students who are at risk for math
22 deficiencies and for progress monitoring throughout the school year;

23 4. Be used to assess students with disabilities and English
24 language learners; and

1 5. Be accompanied by a data management system that provides
2 profiles of students, class, grade level, and school building. The
3 profiles shall identify each student's instructional point of need,
4 competency for advanced math coursework, and math proficiency level.
5 The State Board of Education shall also determine other comparable
6 math assessments for diagnostic purposes to be used for students at
7 risk of math failure.

8 C. 1. Exemptions to the screening requirements required by
9 this section may be provided to students who have documented
10 evidence that they meet at least one of the following criteria as
11 related to the provision of classroom instruction:

- 12 a. the student participates in the Oklahoma Alternate
13 Assessment Program (OAAP) and is taught using
14 alternate methods,
- 15 b. the student's primary expressive or receptive
16 communication is sign language,
- 17 c. the student's primary form of written or read text is
18 Braille, or
- 19 d. the student's primary expressive or receptive language
20 is not English, the student is identified as an
21 English learner using a state-approved identification
22 assessment, and the student has had less than one (1)
23 school year of instruction in an English-learner
24 program.

1 2. A public school that grants an exemption pursuant to
2 paragraph 1 of this subsection shall provide ongoing evidence of
3 student progression toward English language acquisition with the
4 same frequency as administration of screening assessments. Evidence
5 may include, but not be limited to, student progression toward OAAP
6 math essential elements, proficiency in sign language and
7 mathematical reasoning, and proficiency in Braille and mathematical
8 concepts.

9 D. 1. Students who are administered a screening instrument
10 pursuant to subsection A of this section and are found to be
11 exceeding grade-level targets shall be provided advanced learning
12 opportunities in mathematics approved for that student's grade
13 level. No student who qualifies pursuant to this subsection shall
14 be removed from the advanced learning opportunity provided to the
15 student unless a parent or legal guardian of the student provides
16 written consent for the student to be excluded or removed after
17 being adequately informed that the student's placement was
18 determined by the student's achievement on the screening instrument.

19 2. Students who are administered a screening instrument
20 pursuant to subsection A of this section and are found not to be
21 meeting grade-level targets shall be provided a program of math
22 instruction designed to enable students to acquire the appropriate
23 grade-level math proficiency. The program of math instruction shall
24 be based on scientific math research and align with the subject

1 matter standards adopted by the State Board of Education. A program
2 of math instruction shall include:

- 3 a. sufficient additional in-school instructional time for
4 the acquisition of mathematical proficiency, which is
5 a combination of real-world problem-solving skills,
6 procedural fluency, conceptual understanding, and
7 productive dispositions,
- 8 b. if necessary and if funding is available, tutorial
9 instruction after regular school hours, on Saturdays,
10 and during summer; however, such instruction may not
11 be counted toward the ~~one-hundred-eighty-day~~ one-
12 hundred-eighty-one-day or ~~one-thousand-eighty-hour~~
13 one-thousand-eighty-six-hour school year required in
14 Section 1-109 of ~~Title 70 of the Oklahoma Statutes~~
15 this title,
- 16 c. assessments identified for diagnostic purposes and
17 periodic monitoring to measure the acquisition of math
18 proficiency including, but not limited to, real-world
19 problem-solving skills, procedural fluency, conceptual
20 understanding, and productive dispositions, as
21 identified in the student's program of math
22 instruction,
- 23 d. high-quality instructional materials grounded in
24 scientifically based math research, and

1 e. a means of providing every family of a student in
2 second, third, fourth, and fifth grade access to free
3 online evidence-based math instruction resources to
4 support the student's math development at home.

5 3. A student enrolled in second, third, fourth, ~~and~~ or fifth
6 grade who exhibits a deficiency in math at any time based on the
7 screening instrument administered pursuant to subsection A of this
8 section shall receive an individual math intervention plan no later
9 than thirty (30) days after the identification of the deficiency in
10 math. The math intervention plan shall be provided in addition to
11 core math instruction that is provided to all students. The math
12 intervention plan shall:

- 13 a. describe the research-based math intervention services
14 the student will receive to remedy the deficiency in
15 math,
- 16 b. provide explicit and systematic instruction in real-
17 world problem-solving skills, procedural fluency,
18 conceptual understanding, and productive dispositions,
19 as applicable,
- 20 c. monitor the math progress of each student's math
21 proficiency throughout the school year and adjust
22 instruction according to the student's needs, and
- 23 d. continue until the student is determined to be meeting
24 grade-level targets in math based on screening

1 instruments administered pursuant to subsection A of
2 this section or assessments identified for diagnostic
3 purposes and periodic monitoring pursuant to
4 subparagraph c of paragraph 2 of this subsection.

5 4. The math intervention plan for each student identified with
6 a deficiency in math shall be developed by a student math
7 proficiency team and shall include supplemental instructional
8 services and supports. Each team shall be comprised of:

- 9 a. the parent or legal guardian of the student,
- 10 b. the teacher assigned to the student who had
11 responsibility for math instruction in that academic
12 year,
- 13 c. a teacher who is responsible for math instruction and
14 is assigned to teach in the next grade level of the
15 student, and
- 16 d. a teacher who specializes in math interventions, if
17 one is available.

18 5. A school district shall notify the parent or legal guardian
19 of any student in second, third, fourth, and fifth grade who
20 exhibits a deficiency in math at any time based on the screening
21 instrument administered pursuant to subsection A of this section.
22 The notification shall occur no later than thirty (30) days after
23 the identification of the deficiency in math.

SECTION 4. AMENDATORY Section 4, Chapter 492, O.S.L.

2025 (70 O.S. Supp. 2025, Section 1210.902), is amended to read as follows:

Section 1210.902. A. Contingent on the provision of appropriated funds designated for the Oklahoma Math Achievement and Proficiency Act, public school districts may be allocated monies for each enrolled second-, third-, fourth-, and fifth-grade student of the current school year who is found to be in need of remediation or intensive intervention services in mathematics. The allocation shall be distributed to each public school district upon approval of the strong math plan for the school district by the State Board of Education and the submittal of a child-count report to the State Department of Education that details the number of students identified as needing remediation or intensive intervention services in mathematics. To determine a per-student allocation amount, the total amount of funds available for allocation each year shall be divided by the total number of students in the state identified as in need of remediation or intensive intervention services in mathematics as provided for in Section ~~3~~ 1210.901 of this ~~act~~ title.

Each public school district shall be allocated an amount equal to the per-student allocation amount multiplied by the number of identified students enrolled in the school district.

B. Public school districts receiving more than Two Thousand Five Hundred Dollars (\$2,500.00) pursuant to subsection A of this

1 section shall spend no less than ten percent (10%) to provide
2 professional development for teachers. The professional development
3 shall include training in scientifically based math research
4 including how students learn mathematical concepts; training in
5 providing explicit and systematic instruction in real-world problem-
6 solving skills, procedural fluency, conceptual understanding, and
7 productive dispositions; implementing math strategies that research
8 has shown to be successful in improving math proficiency among
9 students with math difficulties; courses leading to a micro-
10 credential in mathematics; and instructional materials required for
11 implementation.

12 C. The Office of Mathematics Improvement within the State
13 Department of Education shall approve and publish a list of
14 professional development programs and providers that are evidence-
15 based and directly address the cognitive science of how students
16 learn mathematics for which districts are permitted to use the funds
17 received pursuant to this section.

18 D. If a teacher attends and completes a professional
19 development institute in elementary math approved by the Commission
20 for Educational Quality and Accountability during the summer or when
21 school is not in session, the teacher may receive a stipend equal to
22 the amount of the cost for a substitute teacher, based on the amount
23 of funds allocated.

24

SECTION 5. AMENDATORY Section 5, Chapter 492, O.S.L.

2025 (70 O.S. Supp. 2025, Section 1210.903), is amended to read as follows:

Section 1210.903. A. If a teacher determines that a student in second, third, fourth, and fifth grade is performing above grade level in mathematics by the start of the second quarter of the school year, the parent or legal guardian of the student shall be notified of:

1. The math proficiency level of the student;

2. The program of advanced math instruction available for the student; and

3. The potential for the student to participate in a summer academy or other program designed to assist the student in excelling in mathematics.

B. If a teacher determines that a student in second, third, fourth, ~~and~~ or fifth grade is not performing at grade level in mathematics by the start of the second quarter of the school year, the parent or legal guardian of the student shall be notified of:

1. The math proficiency level of the student;

2. The program of math instruction for the student as required pursuant to ~~this act~~ the Oklahoma Math Achievement and Proficiency Act; and

1 3. The potential need for the student to participate in a
2 summer academy or other program designed to assist the student in
3 attaining grade-level math proficiency.

4 C. A teacher who determines a student in second, third, fourth,
5 ~~and~~ or fifth grade is exceeding or not meeting grade-level targets
6 for mathematics may, after consultation with the parent or legal
7 guardian of the student, recommend that the student participate in
8 and complete a summer academy or other program.

9 D. Summer academy programs shall be designed to ensure that
10 participating students successfully complete an advanced
11 mathematical program or grade-level competencies in mathematics to
12 enhance next-grade readiness. A summer academy math program shall
13 be a program that incorporates the content of a scientifically
14 research-based professional development program administered by the
15 Commission for Educational Quality and Accountability or a
16 scientifically research-based math program administered by the State
17 Board of Education which is taught by teachers who have successfully
18 completed professional development in the math program. All summer
19 academy programs shall consist of a minimum of three (3) consecutive
20 days. ~~The State Department of Education shall provide a list of~~
21 ~~qualified entities for providing the summer academy programs to all~~
22 ~~schools by April 1, 2026.~~

23 E. School districts may approve an option for students who are
24 unable to attend a summer academy. The optional program may

1 include, but not be limited to, an approved private provider of
2 instruction, approved computer- or Internet-based instruction, or an
3 approved program of math instruction monitored by the parent or
4 legal guardian of the student. Public school districts shall not be
5 required to pay for the optional program but shall clearly
6 communicate to the parent or legal guardian the expectations of the
7 program and any costs that may be involved.

8 F. Subject to the availability of funds, beginning one (1) year
9 after implementation of this section, the requirements of subsection
10 C of this section may be expanded to apply to students in first
11 grade. Each year thereafter, the requirements may be expanded by
12 one grade level until the requirements apply to kindergarten
13 students through fifth-grade students. Summer academy programs
14 shall be designed for each grade level. Nothing in this section
15 shall prevent the State Board of Education or a school district
16 board of education from utilizing private, local, or federal funds
17 to implement the provisions of this section.

18 G. The State Board of Education shall promulgate rules to
19 implement the provisions of this section, which shall include
20 requirements for instructional time for summer academy programs,
21 teacher qualifications, and evaluation of student achievement as a
22 result of summer academy programs or other optional programs.

SECTION 6. AMENDATORY Section 8, Chapter 492, O.S.L.

2025 (70 O.S. Supp. 2025, Section 1210.907), is amended to read as follows:

Section 1210.907. A. Beginning with the ~~2026-2027~~ 2027-2028 school year and for each school year thereafter, any student enrolled in second, third, fourth, and fifth grade in a public school in this state who is assessed through the Oklahoma Math Achievement and Proficiency Act pursuant to Section ~~3~~ 1210.901 of this ~~act~~ title, and who is not meeting grade-level targets in mathematics after the beginning-of-the-year screening instrument, shall be screened for dyscalculia. Screening also may be requested for a student by his or her parent or legal guardian, teacher, or counselor. A student who is identified with characteristics of dyscalculia shall not be required to be rescreened unless requested by his or her parent or legal guardian. Nothing in this section shall preclude a school district from administering a dyscalculia screening tool to identify, refer, evaluate, or provide appropriate services to any student suspected of having dyscalculia or another math-related disorder prior to the 2027-2028 school year.

B. No later than ~~December 31, 2025~~ February 28, 2027, the State Board of Education, in consultation with the Office of Mathematics Improvement within the State Department of Education, shall develop policies for dyscalculia screening required pursuant to this section and shall include, but not be limited to:

1 1. The definition and characteristics of dyscalculia and
2 related disorders;

3 2. The process for referring students in grades two through
4 five for screening;

5 3. A process for providing notification to parents or legal
6 guardians of the use of a qualified ~~dyscalculia screening~~
7 dyscalculia screening tool and notification of the results of the
8 screening;

9 4. A process for providing the parents or legal guardians of
10 students screened for dyscalculia with information and resource
11 material regarding dyscalculia;

12 5. A process for monitoring the student's progress after the
13 positive identification of characteristics of dyscalculia or other
14 math-related disorders; and

15 6. Requirements and qualifications for screeners that
16 demonstrate an understanding of and training to administer the
17 screening instrument.

18 C. The Board shall adopt a list of approved qualified
19 dyscalculia screening tools based on recommendations from the Office
20 of Mathematics Improvement within the State Department of Education
21 that address developmentally appropriate components.

22 D. Screening shall be conducted in accordance with the policies
23 developed by the State Board of Education pursuant to subsection B
24 of this section and the guidance within the dyslexia and dysgraphia

1 handbook developed pursuant to Section 1210.517 of ~~Title 70 of the~~
2 ~~Oklahoma Statutes~~ this title including policies and information
3 developed relating to universal screening of students for
4 characteristics of dyscalculia.

5 E. Beginning ~~June 30, 2026~~ June 30, 2028, and June 30 each year
6 thereafter, public school districts shall provide the following data
7 to the State Department of Education:

8 1. The number of students by grade level in grades two through
9 five who were screened for dyscalculia in a school year;

10 2. The number of students by grade level in grades two through
11 five who were newly identified as having characteristics of
12 dyscalculia in a school year;

13 3. The process or tools used to evaluate student progress;

14 4. The number of trained school system personnel or licensed
15 professionals used to administer the qualified dyscalculia screening
16 tool;

17 5. The number of students in grades two through five who were
18 participating in interventions within the school setting and the
19 number of students participating in interventions outside the school
20 setting; and

21 6. The programs used by districts for intervention within the
22 school setting.

1 F. The State Department of Education shall designate personnel
2 to provide technical assistance to implement the provisions of ~~this~~
3 ~~act~~ the Oklahoma Math Achievement and Proficiency Act.

4 G. By ~~December 31, 2026~~ December 31, 2028, and by December 31
5 each year thereafter, the State Department of Education shall
6 electronically provide a report containing all of the data provided
7 pursuant to subsection E of this section to the Governor and
8 Legislature and make the report available on the Department's
9 website.

10 H. As funds are available, ~~beginning with the 2026-2027 school~~
11 ~~year~~, the Department shall provide training on the best practices
12 for screening for dyscalculia.

13 I. The State Board of Education may promulgate rules to
14 implement the provisions of this section.

15 SECTION 7. This act shall become effective July 1, 2026.

16 SECTION 8. It being immediately necessary for the preservation
17 of the public peace, health, or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

1 Passed the Senate the 24th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives